

STATE OF NEW YORK

5010--B

2025-2026 Regular Sessions

IN SENATE

February 18, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the transportation law, in relation to creating a road salt reduction policies and applicator training program and requiring the training of state agencies and state contractors which use road salt

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The transportation law is amended by adding a new section 23 to read as follows:

§ 23. Road salt reduction policies and applicator training program. 1. (a) For the purposes of this section, the term "road salt" shall mean a mineral form of sodium chloride which melts snow and ice by lowering the freezing point of water.

(b) The commissioner, in consultation with the commissioner of environmental conservation, shall, no later than December first, two thousand twenty-seven, establish a set of comprehensive road salt reduction policies and standards to include, but not be limited to, reasonable application methods, techniques, rates and frequencies to measurably reduce road salt applied to public roadways, enhancement of winter road maintenance levels of service and best management practices, and monitoring and operational plan goals, objectives, and activities.

2. (a) The commissioner shall, no later than December first, two thousand twenty-eight, design a road salt applicator training program to train road salt applicators in meeting the standards of the road salt reduction policies established pursuant to subdivision one of this

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 section. Such road salt applicator training program shall include, but
2 need not be limited to:

3 (i) Instruction in the science of road salt, granular road salt alter-
4 natives and road salt pollution;

5 (ii) Training materials regarding the environmental and human health
6 impacts of road salt;

7 (iii) Best practices for the application of sodium chloride to roads,
8 parking lots, and sidewalks, such as the establishment of baseline stan-
9 dards for salt application policies and practices for winter management
10 operations;

11 (iv) Use of state of the art equipment for snow and ice removal;

12 (v) Use of monitoring technologies for annual reporting of road salt
13 use by location;

14 (vi) A plan of action for the reduction or elimination of sodium chlo-
15 ride pollution in environmentally sensitive areas;

16 (vii) A verification process for assuring best practices are being
17 implemented and shall continue to be implemented;

18 (viii) The use of road salt alternatives; and

19 (ix) A process for certification of trained and approved applicators,
20 including particular locations for in-person training, and a time period
21 within which to complete continuing training requirements.

22 (b) In creating the road salt applicator training program, the commis-
23 sioner shall use best efforts to review current programs and research
24 being conducted in the state.

25 (c) In creating the road salt application training program, the
26 commissioner shall consider the ability to open the training to all
27 applicators applying road salt on public roadways, driveways and parking
28 lots.

29 3. The commissioner shall prepare and submit to the governor, the
30 temporary president of the senate, the speaker of the assembly, the
31 minority leaders of the senate and assembly, and the chairs of the
32 senate and assembly committees on transportation, on or before December
33 first, two thousand twenty-nine, a report containing the department's
34 findings and recommendations following the implementation of the road
35 salt applicator training program established pursuant to subdivision two
36 of this section that include, but are not limited to:

37 (a) Recommendations for expanding the availability of the training
38 program;

39 (b) Recommendations regarding funding options or assistance to locali-
40 ties for purchase of state of the art equipment for the application of
41 road salt;

42 (c) Findings, using existing data and information, regarding locations
43 in the state where road salt contamination may be a threat to the envi-
44 ronment, property or human health, to the extent that such information
45 is available from the department of environmental conservation and the
46 department of health;

47 (d) Findings regarding the use of similar programs in other states;
48 and

49 (e) Findings regarding costs associated with conducting such program.

50 4. Effective January first, two thousand twenty-nine, the department,
51 every state agency, and every state contractor which applies road salt
52 on state roads, driveways and parking lots shall use the training mate-
53 rials established in subdivision two of this section to train and inform
54 employees on the best practices of applying road salt.

55 § 2. This act shall take effect immediately.